

(COURT OF APPEALS, DIVISION I)
OF THE STATE OF WASHINGTON
No. (844504)

(Manning) MOTION FOR
(vs) MODIFICATION
(Bennett) OF DECISION

1. IDENTITY OF MOVING PARTY

Zackariah J. Bennett,
appellant

2. STATEMENT OF RELIEF SOUGHT

Relief under RAP 13.4(b)(1)

Citing: Innovation Law Lab v. Mayorkas, 5 F.4th 1099
(9th Cir. 2021), and in keeping with “established” practice
for resolving a civil case that becomes moot pending review by
a higher court (whether the Supreme Court or a court of appeals).

Specifically:

Modification of decision to include vacatur of the judgment below,
and remand with a direction to dismiss .

3. SUPPORTING STATEMENT

I, Zackariah J. Bennett, do come before the court to request a
modification of the decision entered on 03/11/2024 to include

vacatur of the judgment below, and remand with a direction to dismiss.

This is in keeping with “established practice” in this type of case as shown in the recent Supreme Court decision in *Innovation Law Lab v. Mayorkas*, 5 F.4th 1099 (9th Cir. 2021); Citing *United States v. Munsingwear*, 340 U.S. 36, 71 S.Ct. 104, 95 L.Ed. 36 (1950)

Munsingwear addresses what to do with a court of appeals decision when the case becomes moot while it is pending on review by a higher court (whether the Supreme Court or a court of appeals). In *Munsingwear*, the Supreme Court held that, where intervening mootness prevents appellate review of the underlying decision, the decision below ordinarily should be vacated. “[T]he established practice of the Court in dealing with a civil case from a court in the federal system which has become moot while on its way here or pending our decision on the merits is to reverse or vacate the judgment below and remand with a direction to dismiss.” 340 U.S. at 39

“Disposing of a moot case in this manner thereby “clears the path for future relitigation of the issues between the parties and eliminates a judgment, review of which was prevented through happenstance.” Put another way, the *Munsingwear* procedure for disposing of cases that become moot on appeal “prevent[s] a judgment, unreviewable because of mootness, from spawning any legal consequences,” and thereby ensures that the federal appellate courts, rather than individual litigants, have the last word on the answers to legal questions.” *Munsingwear*, 340 U.S. at 40, 41

“The reason for this is ... to avoid giving preclusive effect to a judgment never reviewed by an appellate court.” *N.Y.C. Emps.’ Ret. Sys. v. Dole Food Co.*, 969 F.2d 1430, 1435 (2d Cir. 1992).

Vacatur is appropriate “to prevent a judgment, unreviewable because of mootness, from spawning any legal consequences.” *Munsingwear*, 340 U.S. at 41.

The counsel for Mrs. Manning is already claiming *res judica*

in an attempt to avoid litigating the allegations against her in a matter set for trial on 06/17/2024.

This is the exact type of situation that the Munsingwear procedure was established to address.

Respectfully submitted,
Zackariah J. Bennett,
Appellant

A handwritten signature in black ink, appearing to read 'Zack B', followed by a horizontal line.

04/10/2024

Signature

(Date)

17 Old Mountain rd,
Goldendale, WA 9862